

		The court does not understand how this substantial overpayment could not have been realized by counsel immediately upon its receipt. Counsel is ordered to appear at the hearing to propose a prompt solution, including a timetable. Preliminarily, the court contemplates the following is necessary to achieve fairness to class members: 1. Repayment of \$10,000 plus interest at a rate of 10% per annum pursuant to California Code of Civil Procedure § 685.010(a) for the period from June 18, 2025 through June 1, 2026, the date upon which the Settlement Administrator should distribute the funds to class members. 2. The redistribution payments must include any applicable payroll taxes and the tax treatment of payments shall be consistent with the settlement, i.e., 10% wages and 90% interest. Settlement ¶ 32.
103	Fan vs. Cybercoders, Inc. 2021-01207940	Final Accounting The Final Accounting hearing is continued to August 20, 2026 at 2:00 p.m. in Department CX102. Plaintiff is ordered to file a declaration no later than 9 court days prior to the hearing regarding the status of distribution efforts. <u>If the settlement funds are not completely disbursed by the report deadline, including all unclaimed funds, counsel must request a continuance.</u> The court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a final accounting report, as previously ordered. ROA 138 ¶ 20. Any response to the OSC must be filed no later than 9 court days prior to the hearing. Court clerk to give notice.